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REFUGEE PROTECTION



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REFUGEE PROTECTION

If you are at risk of persecution in your home country and cannot return due to this danger, you may be recognised as a refugee and granted permission to remain in the UK. If this situation applies to you, it is crucial that you claim asylum. This process is designed to protect those who face serious threats to their life or freedom due to specific factors such as race, religion, nationality, political opinion, or membership in a particular social group. The UK offers protection to individuals who meet the criteria established under international and domestic law.

Understanding Your Right to International Protection

Your right to seek asylum and protection in the UK is grounded in the **1951 Refugee Convention** (<https://www.unhcr.org/uk/about-unhcr/who-we-are/1951-refugee-convention>), a key international treaty that outlines the rights of refugees and the obligations of nations to protect them. This Convention is enshrined in UK law, which means the UK authorities are legally required to offer protection and must not return you to a country where you would face persecution—a principle known as '*non-refoulement*.' *Non-refoulement* ensures that you cannot be forcibly sent back to a place where your life or freedom would be threatened.

What Are the Main Eligibility Requirements for Asylum or Refugee Protection?

In order to be recognised as a refugee you must meet certain strict criteria:

- **Location:** You must be outside your country of origin, or if you are stateless, outside the country where you normally reside.

- **Persecution:** You must have a well-founded fear of persecution based on your race, religion, nationality, political opinion, or membership in a particular social group. This group could be defined by various factors, including gender, sexual orientation, or cultural identity, especially if these factors put you at risk due to the socio-political context of your country.
- **Protection:** You must be unable or unwilling to seek protection from the authorities in your home country. This could be due to a lack of effective state protection, corruption, or the state itself being the perpetrator of the persecution.
- **Internal Flight Alternative:** You must demonstrate that there is no part of your country where you can live safely and reasonably be expected to go. This means that the threat to your safety must be pervasive across your entire country, leaving you with no safe haven within your borders.

Preliminary Considerations by UK Authorities

Before evaluating whether you meet the refugee criteria, UK authorities will first determine if they are responsible for examining your claim. Your asylum claim might be considered inadmissible if:

- **Third-Country Asylum:** Another country has already recognised you as a refugee or granted you protection against refoulement.
- **Safe Third Country:** There is another safe country you could reasonably go to, particularly if you have a prior connection to that country. This could include having previously claimed asylum there or having family members who reside there. For instance, if you have applied for asylum in another EU country or have family members living there, the UK might refer you to that country to seek protection.

Additional Information on Asylum and Refugee Protection

Even if you do not meet the strict criteria to be recognised as a refugee, you may still be granted humanitarian protection if there is a real risk that you would be killed, tortured, or suffer serious harm if you returned to your home country. Humanitarian protection is granted under circumstances where the threat does not specifically fall under the reasons outlined in the Refugee Convention but still poses a severe danger to your well-being.

If you are granted **refugee status or humanitarian protection**

(<https://immigrationbarrister.co.uk/humanitarian-protection-vs-refugee-status-whats-the-difference/>), you will receive a residence permit, typically valid for five years. This permit allows you to live, work, and study in the UK and access healthcare and other public services. Your partner and children under the age of 18, if they applied as your dependants, will also receive residence permits. After five years, you may apply for a renewal of your residence permit or apply for **indefinite leave to remain (settlement)** (<https://immigrationbarrister.co.uk/personal-immigration/human-rights/refugee-settlement/>) in the UK.

Moreover, as a recognised refugee or someone with humanitarian protection, you are entitled to apply for a travel document. This document enables you to <https://www.gov.uk/government/organisations/immigration-barristers> (although there may be some restrictions depending on your destination country).

How Our Immigration Barristers Can Help You

Navigating the asylum process can be complex and overwhelming, especially when facing the fear of persecution. Our immigration barristers have extensive experience in preparing and submitting high-quality asylum applications, ensuring that your case is presented with the strongest possible evidence. We also provide expert legal representation if you need to **appeal a Home Office decision to refuse asylum**

(<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/first-tier-tribunal-immigration-appeal/>). Our team has successfully assisted individuals from all over the world in obtaining the protection they need in the UK.

Our services include guiding you through every step of the asylum process, advising you on the necessary evidence to support your claim, and conducting detailed country-specific research. We also prepare comprehensive legal submissions that clearly articulate why you should be granted asylum or humanitarian protection. We understand that this process can be emotionally and mentally challenging, so we strive to be approachable and proactive, ensuring that we fully understand and meet your needs. Our goal is to provide you with the best possible legal support during this critical time.

WE CAN ALSO ASSIST WITH

Instructing country background experts

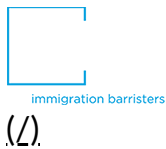
Fresh claims for asylum

Applications for family reunion

Asylum Appeals and Judicial reviews

WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our immigration barristers, contact our Refugee Protection team on 0203 617 9173 or complete our enquiry form.



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